

WHOLESALE ACCOMODATION AGREEMENT 2022-2023

This agreement is made between

Salinda Resort Phu Quoc Island
Cua Lap Hamlet, Duong To Commune
Phu Quoc Island, Kien Giang Province, Vietnam
Tel: (84-297) 399 0011
Email: sales-nta@salindaresort.com
Web: www.salindaresort.com

Công ty Cổ Phần Thương Mại Và Du Lịch Quả Táo
Số 3, Ngõ 103 Văn Cao, Phường Liễu Giai, Quận Ba Đình,
Thành phố Hà Nội, Việt Nam
Tel: 0247 303 4646
Email: info@appletravel.vn
VAT code: 0108146780

The two parties hereby agree to sign this contract effective from **01 Nov 2022 – 31 Oct 2023** with the following terms and conditions as below:

Room Type	Winter Season 01 Nov – 22 Dec 2022 09 Jan – 19 Jan 2023 30 Jan – 15 Apr 2023	Peak Period 23 Dec 2022 – 08 Jan 2023	Tet Holiday 20 Jan – 29 Jan 2023	Summer Season 16 Apr – 31 Oct 2023
	VND	VND	VND	VND
Deluxe Hill View	4,510,000	8,240,000	5,630,000	2,650,000
Deluxe Garden View	4,910,000	9,370,000	6,120,000	2,910,000
Deluxe Sea View	6,060,000	10,860,000	8,180,000	3,190,000
Premium Deluxe Sea View	6,980,000	11,500,000	8,950,000	3,530,000
Garden Villa	7,700,000	12,220,000	9,720,000	4,270,000
Suite Sea View Hotel	10,340,000	15,680,000	12,190,000	5,000,000
Pearl Suite Villa	12,710,000	20,730,000	15,790,000	6,800,000

RATES

- Rates quoted are per room per night, including Service charge and Government tax, and non-commissionable.
- The above rates are valid for all markets and applicable for FIT only (below 15 rooms).
- The above rates are room inclusive breakfast for up to two (2) persons per room per night.
- Complimentary shuttle bus for airport transfer from and to Phu Quoc International Airport - Resort.
- Extra bed shall be charged at **VND 1,400,000** per night, including benefits in room (breakfast), maximum one (1) bed per room.
- Extra bed **shall not be applicable for Villas**. Maximum occupancy for Villas is up to two (2) adults.
- Room rates are applicable on the Travel Agent's account only. Should the guest be paying on his own account, regular published rates will be applied.

MEALS & GALA DINNERS (VND)

	Halfboard Set Menu		Fullboard Set Menu		GALA DINNERS BUFFET	
	Winter-Peak-TET	Summer	Winter-Peak-TET	Summer	Christmas 24 Dec 2022 (Optional)	New Year Eve 31 Dec 2022 (Compulsory)
Adult	1,200,000	800,000	1,700,000	1,200,000	1,400,000	4,800,000
Child 6 – under 12	600,000	400,000	850,000	600,000	700,000	2,400,000
Child under 6	FOC	FOC	FOC	FOC	FOC	FOC

- Compulsory New Year Eve Dinner (31 Dec 2022): price is inclusive of soft drink.**

CHILDREN POLICY

- Under 6 years old: free of charge for accommodation and breakfast, sharing bed with parents.
- 6 - under 12 years old: free of charge for accommodation, sharing bed with parents, surcharge for breakfast **VND 390,000** / night
- Sofa bed surcharge **VND 800,000** / night including breakfast, upon availability.
- 12 years old and above: considering adult
- The resort provides complimentary baby cots/cribs upon request.
- Meal plan prices and surcharges quoted are per guest per night, including Service charge and Government tax, and non-commissionable.

OFFERS

- EARLY BIRD:**
5% deduction of room rate for early bird booking and payment of **30 days** before arrival date.
10% deduction of room rate for early bird booking and payment of **60 days** before arrival date.
15% deduction of room rate for early bird booking and payment of **90 days** before arrival date.
- BONUS NIGHT:**
Stay 7 nights - pay 6 nights; **Stay 10 nights** - pay 9 nights; **Stay 12 nights** - pay 10 nights
Bonus nights shall include the same benefits of the paid room rate.
Bonus night is applicable on the last night(s) stay
 - The above Early Bird and Bonus Night Offers are **not applicable** on Peak Period, meals and Compulsory Dinners.
 - Early Bird Offers and Bonus Night Offers **are applicable** on extra bed.
 - Early Bird Offers and Bonus Night Offers **cannot be combined** with each other.

LENGTH OF STAY RESTRICTION

Minimum 04 nights stay required for Peak Period, Min 03 nights stay for Tet Holiday, Min 02 nights stay from 29 Apr – 01 May (3 nights)

TERMS AND CONDITIONS

Date

The rates set out in these terms and conditions are valid for thirty (30) days from the date of issue. To accept these rates, please ensure this acceptance notice is signed and returned to Salinda Resort Phu Quoc Island, Vietnam within this period. In case the resort does not receive your signed acceptance within thirty (30) days period, any bookings made utilizing these agreement rates may revert to published resort rates.

A. FCheck-In / Check-out

Check in time is from 14:00 hrs, and check out time is at or before 12: 00 noon.
Extension of check out time is subject to availability and will be charged as follows:
Check out until 18:00 hrs – 50% of agreement rate will be applied.
Check out after 18:00 hrs – 100% of agreement rate will be applied.

B. Reservations

All reservations must be in writing and send to the resort either by facsimile or e-mail with authorized signature(s). Telephone availability checks are not considered as a commitment for the reservation. The resort is not required to provide verbal confirmation of availability.

Reservation is subject to availability and confirmation from the resort and the rate is applicable upon receiving advance reservation. In case no prior reservation has been made, the published rates would be applied.

Room rates are applicable on your Travel Agent's account as per the officially authorized travel agent voucher. Should the guest pay by personal account, or extend their stay, regular published rates will be applied to protect the confidentiality of our agreement.

FOR RESERVATIONS:

Tel: +84 28 3929 3097 * Fax: +84 28 3929 3098
Email: reservation@salindaresort.com;

C. Cancellation

C.1 Early Departure - Once check-in formalities have been completed, guests will be charge accommodation for the full duration of the reserved stay.

C.2 Total cancellation

The Travel Agent must notify the resort of cancellation and reduction in number of accommodations within the minimum period specified hereunder.

Summer Season	50% of total room revenue will be charged 21 days prior to guest's arrival. Full charge will be applied 14 days prior to guest's arrival.
Winter Season & Tet	50% of total room revenue will be charged 30 days prior to guest's arrival. Full charge will be applied 20 days prior to guest's arrival.
Peak Period	50% of total room revenue will be charged 60 days prior to guest's arrival. Full charge will be applied 29 days prior to guest's arrival.

C.3 No show / non-arrival

100% of total room night booked and confirmed will be charged.

D. Payment terms

If no credit arrangement has been approved in advance by the resort management, the Travel Agent agrees to settle the account due the resort prior to guests' arrival and subject to the deposit payment requirements above.

Unless otherwise stated in writing, all amounts mentioned in this Agreement are in VND. The resort reserves the right to claim compensation from the Travel Agent for any loss on exchange rates or bank charges arising from accounts settled by the Travel Agent in other foreign currency, and charge interest for late payment and delinquent account at the rate of two percent (2%) per month.

Should a holding pre-payment not be received by the due date, all rooms held will be released.

All payment shall be made directly to the resort bank account in Vietnamese Dong or US Dollar:

Bank Name	Vietcombank – Chi nhánh Nam Sài Gòn
Account Name	Công Ty TNHH An Cường
Account Number	VND Account: 0181 003 430 339 USD Account: 0181 373 430 340
Swift Code	BFTVNVX018

E. Deposit

Summer Season	50% of total room revenue deposit should be settled 21 days prior to guest's arrival. The balance should be settled 15 days prior to guest's arrival.
Winter Season & Tet	50% of total room revenue deposit should be settled 30 days prior to guest's arrival. The balance should be settled 21 days prior to guest's arrival.
Peak period	50% of total room revenue deposit should be settled 60 days prior to guest's arrival. The balance should be settled 30 days prior to guest's arrival.

F. Vouchers

The Travel Agent shall issue to their customers vouchers corresponding to nights booked in the resort. These vouchers must strictly specify: the name of the Travel Agent, the number of guests, their names, the number of rooms, the guests' arrival date, their

departure date, the number of nights booked, the name of the resort and the type of services covered.

The Travel Agent shall submit to the resort, at the same time as the signed contract and for prior approval, a specimen voucher that can be used in the present framework. Vouchers must be presented at the resort reception desk by the customer upon arrival. Failure to do so will result in the customer being charged for the full amount of the resort service at the public rate posted in the resort and required to pay the full amount of this bill prior to departure.

G. Brochure

The Travel Agent will feature the resort in its tour program(s) and brochure(s) with the resort's precise standards, and include a photograph of the resort where appropriate. The resort will provide the Travel Agent with such pictures, descriptive text and resort logos to enable the Travel Agent to advertise market and sell accommodation of the resort. The Travel Agent must ensure that the information included by it or on its behalf in any brochure or marketing material is accurate and updated as many be **appropriate from time to time and approved by the resort prior to publication**.

H. Group policy

Group rates and MICE enquire of **15 rooms or more**, separate conditions will apply to special cases according to individual group booking confirmation with negotiated rates and terms.

I. Undertakings and guest stays

The Travel Agent undertakes not to invite in any person whose behaviour may be prejudicial to the resort. The resort reserves the right to intervene if necessary. The Guests **may not** bring in any food or drink from outside. The Travel Agent undertakes to ensure that their guests comply with all the rules and regulations of the Resort (in particular the ban on smoking in public areas). Therefore, the Travel Agent undertakes to remind their guests of the above provisions and to take responsibility for ensuring they comply with them.

J. Agreement rates on the internet

The agreement rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distributions or retailing via the Internet. Otherwise, **the rates stipulated have to be calculated based on at least a 25% mark-up to the existing agreed rates**.

Travel Agents, without prior written approval from resort management, published rates will be applied.

K. Force Majeure

Each of the Parties shall comply with this agreement subject to the occurrence of a case of force majeure as defined by case law and described as an emergency beyond the control of the Parties and rendering the provision of distribution services or the occupation of resort rooms illegal or impossible.

In the event that the performance of this agreement is rendered impossible as a result of a case of force majeure, the fulfilment of the obligations of the Parties shall be suspended for the duration of the case of force majeure, without this giving rise to any compensation.

If the case of force majeure continues without interruption for a period of more than 6 months, the Parties shall enter discussions in good faith seeking to mitigate the effects of the delay or to agree on the steps to be taken, in a fair and reasonable manner.

L. Assignment – agreement between the parties

This agreement and any riders hereto are specific to the Travel Agent and the Travel Agent may not assign any of the rights and duties or any of the obligations conferred upon it by this agreement or any riders to any natural or legal person without the prior written authorisation of The Resort.

Nothing in this agreement shall create or shall be deemed to create a partnership or other employer/employee relationship between the Parties.

M. Governing law and jurisdiction

The law governing the agreement is the law of Vietnam. Any dispute, controversy or claim relation to the agreement shall be resolved by one or more arbitrators appointed in accordance with the Rules of Conciliation and Arbitration of the Vietnam International Arbitration of the Chamber of Commerce. The Arbitration shall take place in Ho Chi Minh City, Vietnam, and shall be held in Vietnamese.

N. Special remarks

This agreement supersedes any previous agreement rates of the resort and is valid upon acceptance of the above terms and conditions. In order for the resort to include your Travel Agent in its listing for preferential rates, please notify your acceptance of all Terms and Conditions of this agreement by signing the duplicate of it on all pages and by mailing it duly stamped to the resort.

Please note that scanned documents are considered as the original copies.

O. Termination

In the event of breach by either of the Parties to comply with any of the obligations under these presents, the other party will be entitled to terminate the agreement by sending a written notice (registered letter with acknowledgment of receipt) to the other and such breach is not remedied within 8 days of written notice to do so.

This agreement is made at Ho Chi Minh City on 22-Aug-2022, in 2 original copies.

For and on behalf of
Salinda Resort Phu Quoc Island

For and on behalf of
Công ty Cổ Phần Thương Mại Và Du Lịch Quả Táo

Hoang Phuong Thao (Ms.)
Director of Sales & Marketing

Khuat Thi Chung (Ms.)
Director

**SALINDA
RESORT**
PHU QUOC ISLAND

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